

Tentative Rulings for September 17, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2306424	TRAN vs FRIEL	MOTION TO ENFORCE SETTLEMENT

Tentative Ruling: This matter was noticed for September 29, 2026 at 8:30 a.m. in Dept. 3.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403066	DOE vs BEAUMONT UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL

Tentative Ruling:

Meet and Confer

As effective 1/1/26, CCP §2016.040 requires a meet-and-confer declaration to state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*, to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) Here, the record shows written correspondence (Baker Decl., ¶¶ 4, 11-14), but Plaintiffs do not dispute that counsel held no *in-person*, *telephone*, or *videoconference* meeting before filing the motion. Since Plaintiffs did not satisfy the present version of CCP § 2016.040, the court continues the hearing for counsel to make at least one attempt to reach defense counsel by phone. The hearing is continued to September 28, 2026 at 8:30 am in D-3. Plaintiff is to file a supplemental meet and confer declaration 5 court days in advance of the hearing. Defendant is advised that counsel's correspondence is not a judicial admission sufficing to remove an issue from dispute..

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407289	DG MARKHAM PROPERTY OWNER, L.P., vs SHIPJOY, LLC	MOTION TO COMPEL

Tentative Ruling:

This action arises from the parties' dispute regarding a commercial lease for property located at 212 W. Markham Street, Perris, California (the "Property"). On January 31, 2022, Plaintiff DG Markham Property Owner, L.P. ("Plaintiff") and

Defendant Shipjoy, LLC (“Tenant”) entered into a Lease Agreement (“Lease”) for the lease of the Property. (Compl. ¶ 8.) That same day, Plaintiff, Tenant, and Defendant Noor Group, LLC (“Guarantor”) entered into a companion Guaranty. (*Id.* at ¶ 9.) Non-Party Colliers International of Greater Los Angeles, Inc. (“Colliers”) acted as Plaintiff’s commercial real estate broker in connection with the lease for the Property. (Luskin Decl. ¶ 2; Devries Decl. ¶ 2.)

On December 19, 2024, Plaintiff filed a Complaint against Tenant and Guarantor (collectively, “Defendants”), asserting two causes of action: (1) breach of lease against Tenant and (2) breach of guaranty against Guarantor.

Plaintiff alleges that Tenant breached the Lease by vacating the Property on August 23, 2024, and that Plaintiff received the returned keys on September 3, 2024, more than two and a half years before the Lease’s February 28, 2027 expiration date. (Compl. ¶ 13.)

On May 1, 2026, Plaintiff filed a Motion for Summary Judgment, initially set for hearing on July 21, 2026, which was later continued. (Luskin Decl. ¶ 4.)

On or about June 9, 2026, Guarantor served a Deposition Subpoena for Personal Appearance and Production of Documents on Colliers, requiring designation of a Person Most Qualified (“PMQ”) and Requests for Production of Documents (“RPDs”) relating to the Property, some categories without any time limitation and others from February 1, 2022 to the present. (Luskin Decl. ¶ 2; Gonzalez Decl. ¶ 3, Ex. A.)

On June 18, 2026, counsel for Colliers and counsel for Guarantor met and conferred telephonically, and Colliers’ counsel followed up by email inviting Defendants to specifically identify what they were seeking. (Luskin Decl. ¶ 4.) On June 22, 2026, Colliers served written objections asserting, among other things, that the requests were overbroad, unduly burdensome, and vague; sought information available from parties to the litigation; and implicated confidential, proprietary, trade secret, and third-party information. (*Id.* at ¶ 5; Gonzalez Decl. ¶ 8, Ex. E.)

The parties met and conferred again, including by email correspondence and a telephonic meet and confer on June 26, 2026. (Gonzalez Decl. ¶ 9, Ex. F.) Guarantor proposed limiting RPD Nos. 1 and 2 and all PMQ deposition categories to the period from January 31, 2022 to the present. (Gonzalez Decl. ¶ 10; Luskin Decl. ¶ 6.)

Colliers thereafter collected potentially responsive documents from several custodians using basic search terms, imported the collection into Relativity, and after deduplication identified in excess of 15,000 potentially responsive documents. (Luskin Decl. ¶ 7.) A sampling review by Colliers’ counsel reflected communications regarding Colliers’ invoice to Plaintiff, 2022 inquiries regarding availability of the property for sale or lease, communications utilizing the property as a comparator for other deals, and materials Colliers considered confidential, proprietary, or trade secret in nature. (Luskin Decl. ¶ 8; Devries Decl. ¶¶ 3–6.) The parties continued to exchange communications regarding scope, search terms, and cost-sharing, but did not reach agreement. (Luskin

Decl. ¶¶ 9–10.) Colliers did not designate a PMQ for deposition or produce documents in response to the subpoena.

Guarantor moves to compel Colliers, Plaintiff's commercial leasing broker for the Property, to designate a PMQ for deposition and produce documents responsive to its June 9, 2026 subpoena. Guarantor argues that the discovery is directly relevant to Plaintiff's damages and Defendants' mitigation defenses, that Colliers has refused to produce any witness or documents despite identifying over 15,000 potentially responsive documents, that Guarantor substantially narrowed the subpoena during meet and confer, and that \$5,460 in sanctions is warranted under CCP §§ 1987.2 and 2025.480(j) for Colliers' unjustified noncompliance.

In opposition, Colliers argues the motion should be denied because the subpoena is untethered to the only asserted issue (post-August 2024 mitigation) and instead sweeps in four-plus years of pre-breach records; the information it seeks is duplicative of what is available through party discovery from Plaintiff or a targeted PMQ deposition; compliance would require review of more than 15,000 potentially responsive documents, many irrelevant, confidential, or trade secret protected; Guarantor refused reasonable compromises such as search terms, custodian limits, or cost-shifting; and Guarantor failed to file a required separate statement under CRC Rule 3.1345, warranting \$8,025 in sanctions against Guarantor under CCP §§ 2023.030 and 2025.410.

In reply, Guarantor argues Colliers' opposition rests on a fabricated narrative: Guarantor made a written concession narrowing RPD Nos. 1–2 and all eleven PMQ categories to a January 31, 2022–present window, and Colliers never countered, never designated a PMQ, and went silent for weeks before disclosing the “15,000 document” figure on July 16, 2026, with no search terms, no privilege log, and no motion for a protective order; the pre-surrender period is relevant beyond mitigation because it bears on whether Plaintiff had advance notice of, and accepted, Tenant's surrender; Colliers' undifferentiated, boilerplate objection letter was not a Code-compliant item-by-item response, so no separate statement was required under CRC Rule 3.1345(b)(1); and sanctions should issue against Colliers, not Guarantor.

Analysis

1. Legal Standard

Discovery is permitted as to any non-privileged matter relevant to the subject matter and reasonably calculated to lead to admissible evidence. (CCP § 2017.010.) On a failure to produce documents or designate a witness under a deposition subpoena, the propounding party may move to compel. (CCP § 2025.480.) The Court “shall limit” discovery that is unreasonably cumulative, obtainable from a more convenient source, or whose burden outweighs its likely benefit. (CCP § 2019.030(a).) On motion, the Court

may quash or modify a subpoena, or direct compliance on protective terms, “to protect the person from unreasonable or oppressive demands.” (CCP § 1987.1.)

Because a subpoena duces tecum reaches a non-party, it “must describe the documents to be produced with reasonable particularity,” and “[g]eneralized demands, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted.” (*Calcor Space Facility, Inc. v. Sup. Ct.* (1997) 53 Cal.App.4th 216, 218.) “[T]he court should attempt to structure discovery in a manner which is least burdensome” to the non-party and “the burden of discovery should be placed on [non-parties] only if [the parties] do not possess the material sought.” (*Id.* at 225.) The Court must “carefully weigh the cost, time, expense and disruption of normal business . . . against the probative value of the material which might be disclosed.” (*Id.* at 223.)

2. Motion to Compel Subpoena Duces Tecum

Guarantor’s deposition subpoena requires Colliers to designate a PMQ on eleven categories and produce documents responsive to thirteen requests concerning contracts with Plaintiff, listings, marketing, showings, and communications with prospective tenants and their agents. Guarantor contends that this information is relevant to Plaintiff’s claimed damages for reletting the Property and to its mitigation defenses. Colliers does not dispute the general relevance of some mitigation-related discovery but argues that the requests as drafted are overbroad, unduly burdensome, and extend well beyond the relevant time period.

a. Agreed Narrowing of Temporal Scope

During the meet and confer, Guarantor agreed to narrow RPD Nos. 1 and 2 and all eleven PMQ categories to the period from January 31, 2022 to the present. This temporal limitation ties the discovery to the inception of the Lease at issue. Colliers responds that the narrowing was immaterial because the remaining requests already began February 1, 2022. The parties did not reach agreement on any further scope, search terms, or cost-sharing. The Court adopts this agreed limitation as the operative temporal scope for the PMQ deposition and for RPD Nos. 1 and 2. RPD Nos. 11–13, as served, are already limited to February 1, 2022 to the present.

b. Burden and Confidentiality

Colliers has identified legitimate burden and confidentiality concerns, including the identification of over 15,000 potentially responsive documents (Luskin Decl. ¶ 7) and the presence of leasing strategies, prospective tenant lists, commission data, and other proprietary information within Colliers’ brokerage files (Devries Decl. ¶ 3). Those concerns are real but are properly addressed through targeted search terms and a stipulated protective order rather than outright refusal to comply, and are addressed in the disposition below.

c. Request-Specific Analysis

RPD Nos. 1–2 seek all documents relating to any contracts and agreements between Colliers and Plaintiff concerning the Property. Colliers argues that the requests are overbroad and duplicative of information obtainable from Plaintiff and sweep in “documents beyond the agreements themselves . . . years of communications, invoices, drafts, negotiations, internal discussions, payment records, and other items simply referencing the Subject Property.” (Colliers’ Opp. 9:19–22.) While the requests as drafted are overbroad, the operative written agreements themselves are relevant and appropriately obtained from Colliers as the contracting broker. RPD Nos. 1–2 is therefore narrowed to require production of the operative written agreements between Colliers and Plaintiff governing Colliers’ brokerage services concerning the Property from January 31, 2022 to the present, including executed listing agreements, commission or fee agreements, and any amendments, extensions, or modifications thereto. The requests do not require production of ancillary communications, drafts, negotiation records, invoices, or internal discussions, which are duplicative of information available from Plaintiff. To the extent the parties disagree whether a specific document falls within this narrowed scope, they shall meet and confer in good faith within fourteen (14) days.

RPD Nos. 3–8 seek all communications between Colliers and Plaintiff (No. 3), all communications between Colliers and its employees or agents relating to the Property (No. 4), and all documents and communications relating to the listing or showing of the Property (Nos. 5–8), from February 1, 2022 to the present. Colliers argues that these requests lack reasonable particularity, do not identify specific transactions, communications, or categories tied to disputed issues, and would require review of thousands of communications and internal documents, many containing confidential and proprietary information. Colliers further notes that Guarantor has not identified specific categories of information sought or proposed targeted search terms despite repeated invitations to do so. (Luskin Decl. ¶¶ 9–10.) These arguments have merit. Unlike the operative agreements at issue in RPD Nos. 1–2, the sweeping communications and marketing materials sought by RPD Nos. 3–8 are not tied to any identified transaction or issue in dispute, and as drafted, their burden is not proportional to the needs of the case. These requests should therefore be **QUASHED** without prejudice to Guarantor serving properly tailored requests that identify specific transactions, time periods, or categories of communications relevant to identified issues in dispute.

RPD Nos. 9–10 seek all documents relating to contracts and agreements entered into by Colliers concerning the Property from February 1, 2022 to the present. Colliers argues that these requests are overbroad, unduly burdensome, and not limited to any particular contract, transaction, counterparty, or disputed issue, and would require Colliers to identify and produce every agreement it entered into concerning the Property over more than four years without any showing of relevance. These arguments have merit. As currently drafted, RPD Nos. 9–10 reach all third-party agreements Colliers may have entered into concerning the Property, without regard to counterparty, transaction, or connection to any issue in dispute. These requests are **QUASHED**

without prejudice to Guarantor serving properly tailored requests identifying specific agreements or types of agreements relevant to identified issues in dispute.

RPD Nos. 11–13 seek documents and communications relating to showing of the Property and communications with prospective tenants and their agents, from February 1, 2022 to the present. Colliers does not dispute that these requests come closest to the asserted mitigation issue, but argues that their temporal scope reaches approximately two and one-half years before Tenant vacated the Property in August 2024, sweeping in pre-surrender records unrelated to any mitigation obligation. Guarantor responds that pre-surrender showing and prospective tenant records are relevant beyond mitigation because they bear on whether Plaintiff had advance notice of, and accepted, Tenant’s surrender. This provides an independent basis for relevance beyond mitigation. Unlike the sweeping communications and third-party agreements at issue in RPD Nos. 3–10, RPD Nos. 11–13 are tied to identifiable, disputed issues and the information sought is uniquely in Colliers’ possession as the leasing broker. Subject to reasonable targeted search terms to be agreed upon by the parties and a stipulated protective order for confidential, proprietary, and trade secret information, these requests are relevant and proportional to the needs of the case. Compliance with RPD Nos. 11–13 is **DIRECTED**, for the period as served (from February 1, 2022 to the present), subject to the protective terms set forth below.

PMQ Deposition. Guarantor’s subpoena notices eleven PMQ deposition categories concerning the leasing, marketing, showing, and prospective tenant history of the Property, as narrowed by Guarantor to January 31, 2022 to the present. Colliers argues that any PMQ deposition should be limited to post-surrender mitigation and objects to the pre-surrender scope. As discussed above, however, pre-surrender records bear on Plaintiff’s mitigation efforts and on whether Plaintiff had advance notice of, and accepted, Tenant’s surrender, which is a legitimate, separate basis for relevance. Subject to a stipulated protective order for confidential, proprietary, and trade secret information, the PMQ deposition as narrowed is relevant and proportional to the needs of the case. Compliance with the PMQ deposition notice is **DIRECTED**, with Colliers to designate and produce its PMQ consistent with this ruling.

d. Separate Statement

Colliers argues that Guarantor failed to file a separate statement as required by CRC Rule 3.1345(a). Guarantor responds that rule 3.1345(b)(1) excuses a separate statement when no response has been provided to the discovery requests, and that Colliers’ objection letter objected to the subpoena as a whole rather than to any individual request. Colliers’ objection letter was general rather than item-specific, and the Court has sufficient information from the parties’ briefs to rule on the motion on the merits. The Court therefore exercises its discretion to address the motion on the merits.

e. Sanctions

CCP § 2025.480(j) provides that the Court “shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel,” absent substantial justification or other circumstances rendering sanctions

unjust. Here, both sides acted with substantial justification. Guarantor had a legitimate basis to seek discovery from Plaintiff's leasing broker concerning mitigation and related issues, even though the subpoena as served was overbroad in several respects. Colliers, in turn, raised legitimate concerns about scope, burden, and confidentiality, and engaged in meet and confer, even though it could have been more specific in quantifying burden and more proactive in proposing tailored alternatives. Neither party's conduct warrants sanctions. Thus, the Court **DENIES** both Guarantor's request for \$5,460.00 and Colliers' cross-request for \$8,025.00.

Ruling: GRANT IN PART and DENY IN PART Defendant Noor Group, LLC's Motion to Compel Compliance with Subpoena Duces Tecum as follows:

- **PMQ Deposition. GRANT** limited to January 31, 2022 to the present, subject to protective order.
- **RPD Nos. 1–2. GRANT as modified.** Colliers shall produce the operative written agreements between Colliers and Plaintiff governing Colliers' brokerage services concerning the Property from January 31, 2022 to the present, including executed listing agreements, commission or fee agreements, and any amendments, extensions, or modifications thereto, within ____ days. Ancillary communications, drafts, negotiation records, and invoices duplicative of information available from Plaintiff are excluded.
- **RPD Nos. 3–10. QUASH** without prejudice to Guarantor serving properly tailored requests identifying specific transactions, agreements, or categories tied to identified issues in dispute.
- **RPD Nos. 11–13. GRANT** for the period as served (February 1, 2022 to the present), subject to search terms and protective order.
- **Sanctions. DENIED** both sides' requests for monetary sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500269	FREEMAN vs HERN	MOTION TO COMPEL

Tentative Ruling:

The unopposed motion to compel a response to the request for production is granted. Defendant is to provide a verified response, without objection within 20 days. Sanctions are awarded in the amount of \$510.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2500460	MASON vs ANIL	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO

Tentative Ruling:

Evidentiary Objections

Plaintiff objects to the following evidence submitted by E N Logistics in opposition to the motion. **Objection No. 1.** Plaintiff objects to paragraph 6 of the Declaration of Benjamin L. Goldstein, in which counsel describes his post-motion review of the Rigbot website concerning Rigbot's data-recording and retention features. (Goldstein Decl. ¶ 6.) Plaintiff objects on the following grounds: lack of personal knowledge and foundation, improper opinion by counsel, hearsay, secondary evidence, speculation as to E N Logistics' actual Rigbot account and settings, and irrelevance. **SUSTAIN.**

Objection No. 2. Plaintiff objects to E N Logistics' assertions in the Opposition or Separate Statement that Rigbot stores route history for only 14 days and that the data Mr. Bajwa reviewed became unavailable 14 days after the accident. Plaintiff objects on the following grounds: no evidentiary support (argument of counsel is not evidence), lack of foundation and personal knowledge, hearsay, and speculation. **SUSTAIN.**

Objection No. 3. Plaintiff objects to E N Logistics' assertions in the Opposition that Rigbot does not record lane-level data and that counsel is unaware of any GPS product that tracks vehicles to the lane or centimeter. Plaintiff objects on the following grounds: lack of foundation and personal knowledge, improper opinion by counsel, hearsay, and irrelevance. **SUSTAIN.**

Objection No. 4. Plaintiff objects to E N Logistics' uncorroborated characterizations of Mr. Bajwa's deposition testimony in the Opposition regarding GPS/telematics data, for which E N Logistics submitted no excerpt of the deposition transcript. Plaintiff objects on the following grounds: hearsay, lack of foundation and no evidentiary support, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Objection No. 5. Plaintiff objects to E N Logistics' uncorroborated characterization of Mr. Bajwa's deposition testimony in the Opposition or Separate Statement that an inspection sheet is created only upon a positive finding of an item requiring repair. Plaintiff objects on the following grounds: hearsay, lack of foundation, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Objection No. 6. Plaintiff objects to every remaining statement in the Opposition or Separate Statement purporting to describe Mr. Bajwa's deposition

testimony without citation to, or a copy of, the transcript, including the assertion that Mr. Bajwa “appeared to testify” that the company possessed certain documents. Plaintiff objects on the following grounds: hearsay, lack of foundation, secondary evidence, and argument of counsel is not evidence. **SUSTAIN.**

Analysis

1. Legal Standard

Any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action if the matter is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010.) The scope of discovery is construed liberally in favor of disclosure. (*Volkswagenwerk Aktiengesellschaft v. Sup. Ct.* (1981) 122 Cal.App.3d 326, 332.)

A party may move to compel further responses to requests for production where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (CCP § 2031.310(a).) The moving party must show good cause justifying the discovery sought by the demand. (CCP § 2031.310(b)(1).) This requires specific facts showing that the documents are relevant and that there is no adequate alternative source. (*Kirkland v. Sup. Ct.* (2002) 95 Cal.App.4th 92, 98.)

Once good cause is shown, the burden shifts to the responding party to justify its objections. (*Id.*) The objecting party has the burden of justifying the objections. (*Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220–21.)

2. Merits

Plaintiff moves to compel E N Logistics to provide further responses to RFP Nos. 80, 81, 90, 95, and 106. Each will be addressed in turn below.

a. RFP Nos. 80 and 81

RFP Nos. 80 and 81 seek the “Driver Qualification” and “Driver History Investigation” files for Mr. Anil, referencing 49 C.F.R. § 391.51 and 391.53, respectively.

E N Logistics’ further response to No. 80 states that it is withholding the Driver Qualification file maintained for Mr. Anil, including the documents described in section 391.51, in its entirety, and that no documents will be produced in further response to the request. As to No. 81, no further response was ever served.

Vagueness/Ambiguity. E N Logistics objected that both requests are vague, ambiguous, and overbroad as to scope. These objections lack merit. The requests identify the files by name and cite the specific federal regulations that define the documents each file must contain. The Federal Motor Carrier Safety Regulations

require motor carriers to maintain a driver qualification file containing specified documents, including the driver's application for employment, motor vehicle record, road test certificate or commercial driver's license, medical examiner's certificate, and annual review of driving record. (49 C.F.R. § 391.51(b).) Section 391.53 specifies the contents of the investigation history file. (49 C.F.R. § 391.53.) The requests are not vague.

Civil Code § 3295(c). E N Logistics argues that at the time of the requests, no punitive damages claim was alleged, and that Plaintiff's eleventh hour motion for leave to amend to add such a claim is itself an admission that the driver file is not discoverable pursuant to *Díaz* unless and until a punitive damages claim is pled. This argument conflates two distinct issues: (1) whether the driver qualification and investigation files are discoverable on grounds independent of punitive damages, and (2) whether Civ. Code § 3295(c) restricts discovery of these files.

Civ. Code § 3295(c) prohibits pretrial discovery of the evidence described in subdivision (a)(1) and (2), which includes evidence of a defendant's financial condition and evidence of profit motivation. The statute restricts pretrial discovery of financial condition, not discovery of records relevant to the merits of whether the defendant acted with the requisite malice, oppression, or fraud. The driver qualification and investigation files bear on the employer's advanced knowledge of the employee's unfitness and the employer's conscious disregard of the safety of others, which are elements of a punitive damages claim under Civ. Code § 3294(b), not on the employer's financial condition. Section 3295(c) does not bar discovery of these files.

Confidentiality/Privacy. E N Logistics objected that the requests violate the right to privacy under Article I, Section 1 of the California Constitution. A party asserting a privacy objection must establish: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) a threatened intrusion that is serious. (*Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552.) Even where a privacy interest exists, it must be balanced against the requesting party's need for the information. (*Hill v. Nat'l Coll. Athletic Assn.* (1994) 7 Cal.4th 1, 37.) Courts should impose a protective order rather than denying discovery where possible. (*Williams, supra*, 3 Cal.5th at 557.)

The driver qualification and investigation files are federally mandated compliance records, not personal medical or financial records. Any expectation of privacy in such records is diminished. Moreover, the driver is a named defendant in this action. A party's expectation of privacy is substantially lower than a non-party's. (*Heller v. Norcal Mut. Ins.* (1994) 8 Cal.4th 30, 43.) Here, Plaintiff has offered to stipulate to a protective order limiting use of the produced documents to this litigation. A protective order adequately addresses any privacy concern, and the privacy objection does not justify complete withholding.

Relevance—*Díaz v. Carcamo*. E N Logistics' primary objection is that the requests seek information that is not relevant to the subject matter of the litigation or reasonably calculated to lead to admissible evidence, because Mr. Anil's employment with E N Logistics was within the course and scope at the time of the accident, as admitted, invoking *Díaz*.

In *Diaz*, the California Supreme Court held that where an employer admits an employee was acting within the course and scope of employment at the time of an accident, evidence of negligent hiring, supervision, retention, training, or entrustment is irrelevant and inadmissible because the employer is vicariously liable for the employee's conduct regardless of whether the employer was negligent in hiring or supervising the employee. (*Diaz, supra*, 51 Cal.4th at 1157–58.) The Court reasoned that such evidence is superfluous where vicarious liability is admitted. (*Id.* at 1160.)

E N Logistics argues that because *Diaz* bars admission of negligent hiring evidence at trial, the driver file is not only inadmissible but also undiscoverable. This argument misconstrues the scope of discovery. *Diaz* is a rule of trial admissibility, not discoverability. The discovery statutes permit discovery of any non-privileged matter relevant to the subject matter of the action if it is either admissible or reasonably calculated to lead to admissible evidence, and information within the scope of discovery need not itself be admissible to be discoverable. (CCP § 2017.010; *Volkswagenwerk, supra*, 122 Cal.App.3d at 331.)

Plaintiff identifies multiple independent grounds on which the driver qualification and investigation files are relevant or reasonably calculated to lead to admissible evidence:

- **Driver competence and manner of operation.** The files bear on Mr. Anil's training, experience, motor vehicle record, and prior employment safety history, which are matters relevant to his competence as a commercial driver and his operation of the tractor-trailer on the date of the collision, independent of any negligent hiring theory, and a potential source of habit or custom evidence under Evid. Code § 1105.
- **Impeachment.** The files are a proper subject of cross-examination as to Mr. Anil's credibility.
- **Absence of accident or mistake.** Defendants now attribute Mr. Anil's movement into Plaintiff's lane to an "unavoidable accident and mechanical failure"—an evasive reaction to another vehicle and a hood that unexpectedly flew up. Where a party attributes conduct to accident or mistake, evidence of other similar acts is admissible to prove absence of mistake. (Evid. Code § 1101(b).) The files may contain records of prior lane departures or similar unsafe operation incidents admissible to rebut that defense.
- **Negligence per se.** Violations of the Federal Motor Carrier Safety Regulations support breach of duty and negligence per se. (*Weaver v. Chavez* (2005) 133 Cal.App.4th 1350, 1356; *Amerigas Propane v. Landstar Ranger, Inc.* (2010) 184 Cal.App.4th 981, 996.) The files will show whether E N Logistics complied with those regulations, a question independent of any negligent hiring theory.

Diaz does not bar discovery on any of these grounds. Plaintiff has shown good cause and E N Logistics' objections lack merit. The motion is **GRANTED** as to RFP Nos. 80 and 81, subject to entry of a protective order to which Plaintiff has agreed to stipulate.

b. RFP No. 90

RFP No. 90 seeks all driver inspection reports for the tractor and trailer involved in the subject accident, for the day of the accident and the six months preceding it.

E N Logistics' further response states that, after a diligent search and reasonable inquiry concerning the date of the subject accident, it is unable to comply because no written driver inspection report was created for the tractor or trailer on October 15, 2024 (the day of the accident). It states that Mr. Anil performed a visual inspection before beginning the trip, did not identify any defect or deficiency, did not prepare an inspection sheet or other written inspection report, and did not photograph any defect or deficiency, and therefore, no responsive accident date driver inspection report has ever been in its possession, custody, or control.

Vagueness/Ambiguity. E N Logistics objected that the request is vague, ambiguous, and fails to describe the documents sought with reasonable particularity under CCP § 2031.030(c)(1). For the reasons discussed as to RFP Nos. 80 and 81, this objection lacks merit. The request identifies driver inspection reports for a specified vehicle during a defined time period, which satisfies section 2031.030(c)(1).

Overbreadth. E N Logistics objected that the request is overbroad, oppressive, and harassing, and not reasonably calculated to lead to admissible evidence regarding the proximate cause of the subject accident. Plaintiff has shown good cause for the six-month scope: the reports are needed for accident reconstruction experts to distinguish pre-existing tractor damage from collision damage, a disputed and causation central issue, given E N Logistics' expert's contention that right-side tractor damage proves contact by a white truck and Plaintiff's contrary position that no such contact occurred. And as discussed under RFP Nos. 80 and 81, because E N Logistics is a two-truck carrier that acquired the subject tractor in approximately May 2024, the six-month period covers essentially its entire ownership of the tractor and yields at most a handful of records. The objection lacks merit.

Incompleteness of Response. A representation of inability to comply must satisfy CCP § 2031.230, affirming a diligent search and reasonable inquiry, specifying whether the inability results from the item's never having existed, having been destroyed or lost, or never having been in the responding party's possession, and identifying any person known to have possession. E N Logistics' further response addresses only the accident date and is silent as to the six months preceding it. The response is incomplete.

Alleged Agreement to Narrow Scope. As an alternative to its objections, E N Logistics contends that no further response is required because the parties agreed during the June 12, 2026 telephone conference to narrow RFP No. 90 to the accident date, that defense counsel's June 25, 2026 email memorialized that agreement, and

that its logbook production is consistent with that narrowed scope. Plaintiff's counsel, however, denies any such agreement. (King Reply Decl. ¶ 4.) The June 25 email reflects only defense counsel's understanding of the call. It contains no express agreement by Plaintiff's counsel to narrow the temporal scope, and Plaintiff's counsel never confirmed it in writing. Absent clear evidence of such agreement, the request as written governs and RFP No. 90 remains directed to the accident date and the six months preceding it. The motion is **GRANTED** as to RFP No. 90.

c. RFP Nos. 95 and 106

RFP No. 95 seeks GPS or Qualcomm records for the vehicle Mr. Anil was driving from October 10 through October 17, 2024. **RFP No. 106** seeks GPS position history for the tractor on the date of the accident.

E N Logistics initially responded that no responsive documents existed or were in its possession. Its further responses now produce Electronic Driver's Daily Logs for October 10–17, 2024, and represent that no other GPS or Qualcomm records are known to exist.

Vagueness/Ambiguity. For the reasons discussed as to RFP Nos. 80 and 81, the vagueness and ambiguity objections lack merit. The requests identify GPS and telematics records for a specified vehicle during a narrow, defined period using terms widely understood in the transportation industry.

Evasiveness of Response. E N Logistics' responses equate GPS/telematics data with the driver's Electronic Daily Log, but the two are not the same record. The daily log shows duty status (on-duty, off-duty, driving, sleeper-berth) and, at most, the city and state associated with a status change. It does not show the tractor's continuous position, route, specific freeways and lanes traveled, or speed and movements approaching the collision, which GPS/telematics position data does. A representation that production is complete when responsive documents exist is evasive and treated as a failure to respond. (CCP § 2031.220.)

14-Day Auto-Deletion Theory. In opposition, E N Logistics contends, for the first time, that the Rigbot route history data became unavailable 14 days after the accident. The sole support is paragraph 6 of the Goldstein Declaration, reporting counsel's post-motion review of Rigbot's website. Plaintiff's evidentiary objections to that paragraph are sustained (see below), and without it no competent evidence supports the 14-day theory. In any event, the theory is inconsistent with Mr. Bajwa's sworn testimony on March 30, 2026, far beyond any alleged 14-day window, that he had located and retained one copy of the data. If the data was in fact auto-deleted, E N Logistics bore an independent duty to preserve relevant electronically stored information once litigation became reasonably foreseeable following a serious-injury collision, and offers no explanation of what preservation steps, if any, it took.

Good Cause. Plaintiff has shown good cause. The GPS/telematics position data is critical to central, expert-contested issues: the route Mr. Anil actually took (as Mr. Anil's and Mr. Bajwa's accounts conflict) and, in particular, how long Mr. Anil traveled in

the number 2 lane, which commercial trucks are restricted, before the collision. This data bears directly on liability and causation.

The motion is **GRANTED** as to RFP Nos. 95 and 106. E N Logistics shall serve verified further responses without objection, from a person with knowledge of E N Logistics' Rigbot account and data retention practices, that comply with CCP §§ 2031.220 and 2031.230, including, if any responsive data is no longer accessible, a statement of when and how it became unavailable and what preservation steps were taken following the collision, and shall produce all responsive GPS/telematics position data in its possession, custody, or control, including Rigbot route history data.

Ruling: SUSTAIN Plaintiff's Evidentiary Objections. **GRANT** Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set Two, Nos. 80, 81, 90, 95, and 106. **Defendant is to provide a further response and production within 10 days.**

6.

CASE #	CASE NAME	HEARING NAME
CVRI2501734	HOWARD-CO vs CITY OF JURUPA VALLEY	MOTION FOR AN ORDER THAT PLAINTIFF FILE AN UNDERTAKING TO SECURE AN AWARD OF COSTS & FEES

Tentative Ruling:

a. Waiver – Code of Civil Procedure section 995.240

The only issue that remains is whether the bond should be waived or reduced based upon Plaintiff's indigency or hardship.

The court may waive or significantly reduce the amount of an undertaking if the plaintiff establishes indigency because "access trumps comfort." (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 429.) This is so even if the defendant establishes grounds for an undertaking. (*Id.*) The trial court has the discretion to waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because: (1) the principal is indigent, and (2) unable to obtain sufficient sureties, whether personal or admitted surety insurers. (Code Civ. Proc., § 995.240.)

"[A] party formally seeking in forma pauperis status to be relieved of paying specified court fees and costs, which we believe could include a section 1030 undertaking as an additional court fee or cost...must complete a mandatory Judicial Council form (currently designated form FW-001) and provide the specified financial information¹. [Citations.] An applicant who is not receiving government benefits from

¹ Judicial Council Form FW-011, "Request to Waive Court Fees," requires an applicant to list gross monthly income, household income, all financial accounts, vehicles, personal property (jewelry, furniture,

certain public assistance and supplemental income programs or whose monthly income exceeds 125 percent of the current monthly federal poverty guidelines may nevertheless qualify to proceed in forma pauperis if his or her income is not sufficient to pay for court fees and costs as well as the common necessities of life for the applicant and the applicant's family." (*Alshafie, supra*, 174 Cal.App.4th at 434.)

"A plaintiff who has been granted in forma pauperis status has the right to a waiver of the undertaking. However, a plaintiff is not obligated to obtain in forma pauperis status to be entitled to a waiver of the section 1030 bond requirement. [Citations.] Under these circumstances, when the plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for the requisite showing of indigency; and, as discussed, it ultimately remains within the court's discretion to determine whether to grant a waiver. [Citations.] Certainly, however, a plaintiff seeking such a waiver would be well advised to provide the detailed financial information requested on the mandatory Judicial Council form for obtaining in forma pauperis status." (*Alshafie, supra*, 171 Cal.App.4th at 434.)

If the trial court has already granted a plaintiff leave to proceed in forma pauperis, the trial court acts arbitrarily and capriciously if it refuses to vacate or reduce the amount of the undertaking. (*Baltayan, supra*, 90 Cal.App.4th at 1435.) And even if a fee waiver has not been obtained, indigency depends on the litigant's individual situation. (*Alshafie, supra*, 171 Cal.App.4th at 435, 435.) As it is into just out-of-state plaintiffs who earn a low income that may be entitled to relief from requirement of posting of undertaking; not only must courts exempt poor people entirely, but they may have to reduce the security bond required for middle-income litigants as well. (*Id.* at 46.)

Here, Plaintiff re-filed her opposition but additionally includes her own declaration. Plaintiff testified that due to her injury from April 11, 2024, she was unable to work for approximately nine months and sustained a loss of earnings. (Plaintiff Decl., ¶2.) At the time of Plaintiff's injury, she was working 30 hours per week at Stater Bros. at \$18.50 an hour. (*Ibid.*) Based on the foregoing, Plaintiff's monthly income was approximately \$2,404, and she sustained a loss of \$21,645. (*Ibid.*) Due to a complete dislocation of Plaintiff's ankle and fractures to her tibia and fibula that required surgical intervention with permanent internal hardware, Plaintiff is unable to work in the same or similar capacity, continues to have reduced mobility, unable to stand or walk for prolonged periods, and cannot work as she could prior to the injuries. (*Id.* at ¶¶4-5.) Plaintiff includes a Request to Waive Court Fees form with her declaration as part of her evidence showing inability to pay the security undertaking. (*Id.* at ¶6, Attachment.) The waiver request discloses a monthly income of \$2,470: child support of \$530; current employment at Lake Havasu Unified School District as a Special Education Paraprofessional of \$1200; front desk at Quality Inn and Suites of \$500, and independent tutor at \$240. (*Id.* at ¶3, Attachment.) Taken together, aside from child support, Plaintiff's entire income now is less than what she was making at Stater Bros. Plaintiff does not appear to have any other assets or investments sufficient to cover the cost of the undertaking.

furs, stocks, bonds, etc.), and monthly deductions and expenses, including rent or house payments, food and household supplies, utilities, transportation expenses, etc.

When an out-of-state plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for requisite showing of indigency that plaintiff must make in order to obtain waiver of security for costs, and it ultimately remains within the trial court's discretion to determine whether to grant waiver. (*Alshafie v. Llande* (2009) Cal.App.4th 421, 434.) In *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, the court states, "not only must the courts exempt poor people entirely, but they may have to reduce the security bond required for middle income litigants, as well. If the bond is set high enough to fully protect the in-state defendant, it may be higher than middle income out-of-state plaintiffs can afford – and thus deprive them of their day in court. (*Id.* at fn. 34.)

Based on the foregoing, the Court **GRANTS** Plaintiff's request for a waiver and excuses her from the requirement of posting an undertaking.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME vs WALMART INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

This is a negligence and products liability action. On 4/1/2025, Irma Padilla Adame, Angel Artemio Avila Padilla, Anthony Avila Padilla, by and through his guardian ad litem, and the Estate of Marco Antonio Avila Solis (collectively "Plaintiffs"), filed their complaint against Walmart, Inc. ("Walmart"), Wardini H.A. Company ("Wardini"), and Paccar, Inc.² ("Paccar"). The complaint asserts the following causes of action: (1) premises liability (against Walmart); (2) negligence (against Walmart and Wardini); and (3) product liability (against Paccar).

The lawsuit arises out of a 12/9/2024 incident occurring at Walmart's distribution center located at 4100 Hamner Avenue, Eastvale, California, resulting in Marco Antonio Avila Solis' death ("Decedent"). (Complaint, ¶ 13.) Decedent worked as a truck driver, employed by Wardini, to transport trailers using a Kenworth T680 tractor unit that Decedent owned. (*Id.* at ¶ 14.) While attempting to complete his "work assignment," Decedent became trapped between the tractor and an adjacent trailer and perished. (*Id.*) The complaint alleges that the premises was dangerous because there were too many trucks and trailers to navigate and handle, improper supervision and procedures on site, and vehicles being left unattended. (*Id.* at ¶ 15.) Regarding Paccar, the complaint alleges the tractor was not reasonably safe as designed, manufactured, distributed, and/or sold. (*Id.* at ¶ 31.)

Now, Paccar moves for a protective order in response to a notice of deposition served by Plaintiff for a person most knowledgeable. Paccar takes issue with Plaintiffs' failure to identify the alleged defect with the T680 Tractor in written discovery and argues that this failure makes the scope of the PMK deposition overbroad. Paccar

² Erroneously sued as "Paccar Inc dba Kenworth Truck Company." References in the complaint to "Kenworth" should be read as references to Paccar.

states that the failure to specifically identify a victim violates the CCP § 2025.230 which requires the notice to describe the matters for examination with reasonable particularity. Paccar also argues there is significant overlap with the jurisdictional deposition.

In opposition, Plaintiffs argue the jurisdictional deposition was for a specific purpose and should not have any impact on this deposition. Plaintiffs also argue Paccar is trying to improperly force an evidentiary burden of proof onto discovery.

In reply, Paccar argues Plaintiffs' opposition confirms the inability to identify the defect with specificity. Paccar argues they are not requiring Plaintiff to prove their case, but seek clarification that allows them to properly prepare the witness to be deposed.

ANALYSIS

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order." (CCP § 2025.420(a).) "The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or any other affected natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.* at § 2025.420(b).) The moving party has the burden of establishing good cause for a protective order. (*Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) "[B]road allegations of harm, unsubstantiated by specific examples or articulated reasoning" are insufficient. (*Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 318 (internal quotation marks and quotation omitted).) "The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order." (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 528.)

First, a motion for protective order must be accompanied by a meet and confer declaration under CCP § 2016.040. (CCP §§ 2017.020, 2025.420(a), and 2019.030(a).) Effective 1/1/2026, CCP § 2016.040(a) requires that any meet and confer declaration in support of a motion reflect a reasonable, good faith attempt to resolve the issues either in person, by telephone, or by videoconference. Here, the meet and confer requirement is satisfied via several emails and a telephone call. (Declaration of Tarik Shoukeh, ¶¶ 3-10.)

The issue here is Paccar's motion is based on the argument that Plaintiff has failed to identify the specific manufacturing defect alleged in their complaint, either in written discovery or in response to Paccar's meet and confer. While Paccar attempts to argue they are not requiring Plaintiff to prove their case, effectively they are. Paccar's argument that, "Plaintiffs' admitted inability to identify what allegedly was defective does not permit them to shift to Paccar the burden of preparing corporate testimony concerning virtually every potentially relevant aspect of the T680 model..." (Paccar's Memorandum of Points and Authorities, p. 7:22-25.) But that is exactly what discovery is. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery admissible evidence." (CCP §

2017.010.) The complaint alleges manufacturing and design defects, including issues with the braking system. (Complaint, ¶¶ 17-18.) The topics listed in the notice are reasonably related to these allegations and discovery is the time for Plaintiffs to investigate whether there were any such defects with the T680. (Declaration of Tarik Shoukeh, Exhibit 8.) The categories otherwise sufficiently describe the potential topics of testimony.

Moreover, the burden is on Paccar to show that the undue burden of discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (*Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) Paccar fails to provide a specific factual showing as to the quantum of work required to respond required to support an argument of an undue burden. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) The fact that there may be some overlap with the jurisdictional deposition is not sufficient.

For these reasons, the court DENIES the motion.

If the party properly asks for monetary sanctions the court “shall” impose a monetary sanction against the losing party on a motion for protective order unless it finds that party made or opposed the motion “with substantial justification” or other circumstances make the sanction “unjust.” (CCP § 2023.030.) This motion was made without substantial justification given the unreasonable demand for Plaintiffs to identify a specific defect before proceeding with the deposition. Plaintiffs request a “reduced” \$2,000 in sanctions based on 9 hours of attorney time at \$300/hour. This amount is reasonable and the court awards the amount requested.